

Calendar Line # 7
Case Name Adelita Mendez Gonzalez vs Costco Wholesale Corporation et al
Case No. 25CV474250
Motion to Disqualify Plaintiff's Law Firm I. <u>BACKGROUND</u> This case stems from a personal injury, slip and fall incident at Costco warehouse. On September 3, 2025, Plaintiff Adelita Mendez Gonzalez ("Gonzalez") alleges two causes of action including: (1) motor vehicle accident general negligence, and (2) premises liability. Defendant Costco Wholesale Corporation, a Washington Corporation ("Costco"). Before the Court is Defendant Costco's motion to disqualify Plaintiff's counsel, Downtown L.A. Group ("DTLA") based on one its attorneys Anthony Werbin ("Werbin"). From approximately July 2017 to January 2020, Mr. Werbin previously worked as an associate at Manning & Kass, Elrod, Ramirez, Trester LLP ("M&K"), which was one of the firms that Costco retained to defend in claims, including personal injury suits. (Declaration of Werbin ¶ 3). It is undisputed that Mr. Werbin represent Costco in any matters previously involving Plaintiff Gonzalez. (Defendant's memorandum of points and authorities ("MPA"), p. 4). Defendant Costco seeks to disqualify DTLA claiming vicarious conflict and fruits of the poisonous tree (Defendant's notice, p. 1). The motion was filed on January 9, 2026 and accompanied by a proof of service indicating electronic mail service on the plaintiff's counsel. Plaintiff filed opposition briefs on August 20, 2026. Defendant filed a reply brief on August 20. The Court has carefully reviewed the following: notice of motion (totaling 3 pages); MPA (totaling 12 pages); Declaration of Leigh Ann Rujiters (totaling 4 pages); Declaration of Matthew C. Jaime (totaling 3 pages); Judicial Notice and Exhibits A-C (totaling 23 pages); Opposition to the motion to disqualify (totaling 12 pages); opposition for request for notice (totaling 4 pages); Declaration of Arlen Khachatourians (totaling 28 pages); and Declaration of Anthony Werbin (totaling 5 pages); Reply brief (totaling 11 pages); proofs of services; and the pleadings. II. <u>PROCEDURAL MATTERS</u> A. <u>UNTIMELY OPPOSITION</u> The Court notes procedural violation by the plaintiff. Plaintiff filed opposition papers on August 20, 2026. Per Code of Civil Procedure section 1005(b) opposition papers were to be filed by August 19, 2026. The papers are late. California Rules of Court, rule 3.1300, subdivision (d) states, "No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate." Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will look past the procedural violations and consider the motion and opposition on its merits. However, the plaintiff is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court's refusal to consider untimely filed papers. B. <u>REQUEST FOR JUDICIAL NOTICE</u> Under Evidence Code section 452(c)-(d), the court may take judicial notice of court records and actions of the state. Here, Plaintiff requests that the court takes judicial notice of three exhibits: Exhibit A is an Order by the Honorable Serena R. Murillo from Los Angeles County Court in the matter of Alba Cochran vs. Costco Wholesale Corporation (BC708124) Court dated October 25, 2021; Exhibit B is an Order by the Honorable Anthony Mohr

from Los Angeles County Court in the matter of Maria Velasco Rodas vs. Costco Wholesale Corporation (20STCV30503) dated February 8, 2023; and Exhibit C is an Order by the Honorable Charles C. Lee from Los Angeles County Court in the matter of Olivia Navarro vs. Costco Wholesale Corporation (21STCV03573) dated February 21, 2023. (Defendant’s Judicial Notice, p. 1; Exhibits A-C).

Plaintiff opposes the defendant’s request for judicial notice on the grounds that Exhibits A-C have no connection to the present case and is thus irrelevant and improper under Evidence Code section 451-452. (Opposition, p. 2). Plaintiff also asserts that the court cannot take judicial notice of hearsay statements. (*Id.*). Plaintiff avers that the defendant improperly seeks judicial notice of facts that are not beyond reasonable dispute as the documents contain factual assertions and conclusions that the plaintiff disputes. (*Id.*, at p. 3).

Defendant in its reply avers that it does not seek to establish a factual basis, but simply seeks the Court to review the terms of the legal reasoning and analysis.

The Court notes that while the plaintiff opposes judicial notice for courts granting the defendant’s motion to disqualify in other cases, the plaintiff also argues in her motion that courts have denied the defendant’s motion to disqualify in five other cases. (Opposition, p. 5; Exhibits 1-5 attached to Declaration of Khachatourians ¶ 11). The plaintiff does not seek judicial notice of those five cases in Exhibits 1-5.

The Court GRANTS the defendant’s request judicial notice to the extent that Exhibits A-C appear to be Orders from cases from Los Angeles County from 2021 – 2023 as identified above. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375). Further, decisions on whether Mr. Werbin has or has not been disqualified at other hearings are not binding on this court.

III. LEGAL STANDARD

A motion to disqualify an attorney requires balancing two fundamental aspects of representation, including a client’s ability to choose his or her lawyer, and the attorney’s ethical duties of loyalty and confidentiality. An attorney’s duty of confidentiality carries on even after the attorney/client relationship ends. Courts have the inherent power to control the conduct of ministerial officers connected with judicial proceedings, and that includes disqualifying counsel where appropriate. (*People ex rel. Department of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135). The first question in deciding whether disqualification is appropriate is to determine whether the earlier case bears a “substantial relationship” to the latter case. (*Lynn v. George* (2017) 15 Cal.App.5th 630). An attorney owes a duty of confidentiality to his or her client. (Bus. Prof. Code, § 6068, subd. (e)(1)). An attorney also owes a duty of loyalty to a client, such that disqualification is necessary even if there is no risk of a client’s confidences being transmitted to the client’s litigation adversary in an unrelated matter. (*Sheppard, Mullin, Richter & Hampton, LLP v. J-M Manufacturing Co., Inc.* (2018) 6 Cal.5th 59, 84 (*Sheppard*), citing *Flatt v. Superior Court* (1994) 9 Cal.4th 275, 284-285 (*Flatt*)). A conflict of interest that requires an attorney’s disqualification from a matter normally extends to the entire firm to safeguard the clients’ legitimate expectations that their attorneys will protect their confidences. (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1139 (*Speedee*), citing *Flatt, supra*, at pp. 283-284; *City and County of San Francisco v. Cobra Solutions, Inc., supra*, at pp. 847-848). Such conflict of interest imputations apply to attorneys who are of counsel. (*Speedee, supra*, at p. 1139 [“Conflicting representations that would disqualify all of a law firm’s attorneys are not more acceptable when an attorney of counsel to the firm creates the conflict”]).

In terms of imputed or vicarious disqualification, the court must analyze a number of factors to see whether there has been an actual violation of the duty of confidentiality or the appearance of one such that to protect the profession’s integrity vicarious imputation is required. The general way to avoid imputation is to do two things:

(1) impose a timely screening protocol; and (2) establish preventive measures to be sure that there is no violation. The burden is on the firm being challenged to establish these points by demonstrating the placement of an ethical wall. The wall may include the following safeguards: physical separation of attorneys; express prohibitions against, and sanctions for, discussing the confidential matters in violation of the protocol; established rules and procedures preventing access to the confidential information and files; procedures to prevent the disqualified attorney from sharing in the profits from the representation; and continuing education in professional responsibility. (*Kirk v. First American Title Ins. Co.* (2010) 183 Cal.App.4th 776). Vicarious disqualification is not automatic. (*California Self-Insurer's Security Fund v. Superior Court* (2018) 19 Cal.App.5th 1065).

IV. ANALYSIS

Here, Defendant Costco seeks to disqualify DTLA on the grounds that Mr. Werbin's prior work at M&K from July 5, 2017 to January 16, 2020 gave him access to confidential and proprietary information pertinent to the instant case and would give the plaintiff an unfair advantage. (Defendant's MPA, at p. 1-2; Declaration of Ruijters, ¶ 9). Defendant emphasizes that while working as an attorney at M&K, Mr. Werbin was lead counsel for Costco on 21 cases and was engaged in every aspect of litigation from developing a strategy or communicating with Costco employees for case preparation, discovery, and deposition, which consisted of attorney-client communications and protective orders. (Declaration of Ruijters, ¶¶ 12-13, and 18). Defense attest that at M&K, Mr. Werbin billed a total of 1,195 hours related to Costco matters, including personal injury matters that are substantially similar to the slip and fall case in the present matter. (*Id.*, ¶¶ 10 and 15). Defense emphasizes that on March 19, 2019, Mr. Werbin attended a California Defense Counsel Conference that Costco held for its panel to discuss defense strategy and tools, and that he sent an email to other attendees sharing his thoughts on defense strategies. (*Id.*, ¶ 14).

Defense argues that an attorney's duties of confidentiality and loyalty to clients endures even after representation ends. (Defense MPA, p. 4; citing *Wutchumna Water Co. v. Bailey*, (1932) 216 Cal. 564). Defendant asserts that the State Bar of California Rules of Professional Conduct, rule 1.9 and California Rules of Professional Conduct requires the attorney to maintain confidence and not reveal information protected from disclosure by Business and Professional Code section 6068 (Defense MPA, p. 5). Defendant emphasizes that a substantial relationship exists as the subjects of the prior and current relationship are linked in some rational manner. (*Id.*, at p. 5; citing *Jessen v. Hartford Casualty Ins. Co.*, (2003) 111 Cal.App.4th 698, 711 (citing *Flatt v. Superior Court*, (2003) 9 Cal.4th 275, 283). Ultimately, Costco's argument is that Mr. Werbin's prior experience working as defense counsel for Costco gave him access to the inner workings of Costco's litigation strategies and Costco's policy. (Defense MPA, at p. 7). Defendant also argues that DTLA's computer screening process is inadequate and that disqualification should be imputed to all members of DTLA. (*Id.*, at p. 8). Costco argues that DTLA has failed to show that Mr. Werbin has and will not be involved with litigation or any communication with attorneys or employees concerning the litigation. (*Id.*, citing *Kirk v. First Am. Title Ins. Co.*, *supra*, 183 Cal.App.4th at 776). DTLA argues that the screening process has to be timely at the outset to prevent any confidences from being disclosed and argues that DTLA only implemented the screening after being disqualified from other cases and that a declaration stating that confidential information was not conveyed is insufficient. (*Id.*; citing *Kirk v. First Am. Title Ins. Co.*, *supra*, 183 Cal.App. at 810). Defendant argues that the plaintiff fails to explain the elements of an ethical wall, including: (1) physical, geographic, and departmental separation of attorneys; (2) prohibitions against and sanctions for discussing confidential matters; (3) established rules and procedures preventing access to confidential information and files; (4) procedure preventing a disqualified attorney from sharing in the profits from the representation; and (5) continuing education in professional responsibility. (Defendant's MPA, at p. 9; citing *Henriksen v. Great American Savings & Loan*, (1992) 11 Cal.App.4th 109, 115-16, n.6).

In opposition, Plaintiff's counsel asserts that Mr. Werbin is not and has never been assigned to work on any aspect of this matter. (Declaration of Khachatourian ¶ 4). DTLA and Mr. Werbin attest that Mr. Werbin has not and will not originate any profits from DTLA's presentation of Plaintiff against Costco. (*Id.*; Declaration of Werbin ¶ 15).

Plaintiff's counsel asserts that Mr. Werbin has no access to any documents or information related to this matter. (Declaration of Khachatourian ¶ 5). DTLA explains that in December 2021 it implemented a change to its software and file management system that prohibits any attorney from accessing a case that he or she is not assigned to. (*Id.*, ¶ 6). As to Defendant Costco, specifically, Plaintiff's counsel asserts that there is a firewall against Mr. Werbin from accessing any case involving Defendant as a party. (*Id.*). Plaintiff emphasizes this screening process was in place approximately two years before Plaintiff Gonzalez retained DTLA. (*Id.*). Plaintiff's counsel attests that a strict compliance policy exists regarding the screening and walking process. (*Id.*, ¶ 7). Plaintiff avers that the system is also protected by the fact that the 45 attorneys and 160 employees are separated by various teams with their own set of attorneys, paralegals, and staff, and no file sharing is permitted. (*Id.*, ¶¶ 8-9). Plaintiff asserts that Defendant Costco has filed boilerplate disqualification motions against Mr. Werbin and DTLA despite that fact Mr. Werbin has not worked at M&K for over six years. (*Id.*, ¶ 12; Declaration of Werbin ¶ 3).

Mr. Werbin attests that since departing M&K, he has not been involved in defense work, including for Costco. (Declaration of Werbin ¶ 6). Mr. Werbin attest that for the approximately 2.5 years he worked as an associate at M&K from July 2017 to January 2020, he handled approximately 20 cases involving Costco, but handled numerous insurance defense matters. (*Id.*, ¶¶ 1, 4, and 5). Plaintiff's counsel states that Mr. Werbin spent 20% of time working on cases involving Costco during his time at M&K. (Declaration of Khachatourian ¶ 10). Mr. Werbin asserts that in the Costco cases he handled, there was no specific direction on handling cases or a concerted efforts, and no confidential or propriety information. (*I* Declaration of Werbin ¶¶ 7 and 9).

Plaintiff's counsel asserts that the defendant fails to establish how Mr. Werbin's limited prior handling of personal injury/premises liability matters nearly seven years ago would be material in this matter, and that defense fails to establish the existence of a substantial relationship necessary to disqualify DTLA. (Opposition, p. 2). Plaintiff emphasizes that Rules of Conduct, rule 3-310(e) prohibits an attorney from requirement a new client who is adverse to a former client, where the attorney obtained confidential information material to the current representation. (*Id.*, at p. 6-7). Mere exposure to confidences does not alone warrant disqualification. (*Id.*, citing *In re Complex Asbestos Litigation* (1991) 232 Cal.App.3d 572). Plaintiff's counsel also emphasizes that former presentation alone does not give rise to a lifetime prohibition. (*Id.*, at p. 7; citing *Banning Ranch Conservancy v. Superior Court* (2011) 193 Cal.App.4th 903, 918). Plaintiff emphasizes that defense fails to establish what "confidential information" Mr. Werbin allegedly gained. (*Id.*, at p. 2 and 9). Plaintiff argues that the motion is a boilerplate motion that Defendant has filed against Mr. Werbin countless cases and is a punitive vendetta, and that disqualifying DTLA would discourage all defense attorney from switching sides. (*Id.*, at p. 2 and 8). Plaintiff asserts that disqualification motions are disfavored and must be weighed with caution because it can be misused and undermine the integrity of the judicial process. (*Id.*, at p. 5-6; citing *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 300).

In its reply, Defendant argues that Mr. Werbin represented Costco at least 20 times and did so as recently as 2020. (Reply, p. 1). Defendant emphasizes that in March 2019, Mr. Werbin attended a companywide meeting regarding handling slip and fall protocols. (*Id.*, p. 2). Defendant asserts that DTLA should be vicariously disqualified based on the substantial relationship that Mr. Werbin had regarding Costco. (*Id.*, p. 3). Defense also asserts that DTLA's efforts to wall off Mr. Werbin are inadequate and does not circumvent ethical rules. (*Id.*, at p. 2-5).

The Court notes that substantial relationships often involve lawsuits involving the same transaction, occurrence, or people that an attorney would have received specific factual information while engaged in an earlier case that would have a direct effect on the newer case. The burden of proof is on the former client, here, Defendant Costco to establish he substantial relationship. Defendant Costco is not required to disclose privileged material or provide details that the privileged information could be disclosed. The argument may be that the former attorney gained general information about a former client, also known as a "playbook" relationship," based on the attorney's access

to strategy and policy, which may then give that attorney an unfair advance going against the former client. Essentially, Costco argues that Mr. Werbin’s work at M&K, which included work on approximately 20 cases involving Costco and defense training, provided him with high level of access to Costco’s policies, strategies, and practices regarding persona injury cases, including slip and fall cases. Defendant argues that Mr. Werbin’s access to Costco employees for case preparing, discovery, deposition, and trainings provided him with the inner workings of Costco’s defense litigation. Thus, defense argues that DTLA has access to confidential information through Mr. Werbin and has an unfair advantage in this matter. However, the Court notes that the information obtained must be closely tethered to a specific or actual confidence that has a direct impact on this case. Moreover, DTLA has proffered that Mr. Werbin has not been assigned as counsel on this matter, has no access to any documents or information in the related matter, has not and will not derive profits related to the matter, and that an ethical wall and software program has been implemented to restrict Mr. Werbin from accessing or working on the file. “Additionally, all attorneys at DTLA are instructed of this screening and are advised to maintain strict compliance; it is a well-known firm policy that no cases involving Defendant are assigned or discussed with Mr. Werbin.” (Werbin Decl. ¶¶ 16-18; Khachatourians Decl. ¶¶ 6-9). It has been over six years since Mr. Werbin has left the M&K and engaged in any defense work and has no updated information on Costco. Given the generic information posed based on a playbook type disqualification, the Court does not find that a material relationship test has been met. Defendant’s showing is not specific enough in this context to get through the first prong of analysis that a substantial relationship exists. Further, Mr. Werbin was an associate, who handled approximately 20 cases involving Costco for a 2.5 year period from 2017-2020 and attended a seminar in May of 2019. There is no showing that those specific experiences, tactics, strategies are at issue in this case.

DTLA has not put Mr. Werbin on the case, rather they have walled him off from accessing any files involving Costco. As a result, the issue is not whether he personally should be disqualified, but whether an entire firm must be disqualified. The firm has made a showing that it has taken timely and appropriate measure to screen the compromised attorney from the case. The issue is one of imputed knowledge based on the premise that attorneys and staff talk to one another even though one is not assigned to a particular case. However, imputed or vicarious disqualification is not automatic. (*California Self-Insurer’s Security Fund v. Superior Court*, *supra*, 19 Cal.App.5th at 1065). Here, the ethical wall appears adequate. The screening process was put in around December 2021, prior to this matter being accepted by DTLA. A software and file management system prohibits any attorney from accessing a case that is not assigned to the attorney. Mr. Werbin and the firm are aware that Mr. Werbin is not assigned Costco cases and attorneys are not allowed to discuss Costco cases with him.

V. CONCLUSION

Based on the foregoing, the motion to disqualify is DENIED.

The Court will prepare the Order.

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Calendar Line # 8
Case Name Mid-Century Insurance Company vs Justin Collins
Case No. 25CV477635
Motion to Compel Responses to Request for Production of Documents, Set One and Sanctions <u>I. BACKGROUND</u> This case stems from a subrogation claim arising from April 24, 2024 motor-vehicle accident. On October 15, 2025, Plaintiff Mid-Century Insurance Company (“Mid-Century”) filed a Complaint for damages in the amount of \$41,216.86 against Defendant Justin Collins (“Collins”). Before the Court is Plaintiff Mid-Century’s motion to compel verified responses to request for production of documents (“RFPD”), set one, and sanctions that was filed on May 29, 2026. The motion is accompanied by a proof of service indicating electronic mail service on Defendant Collins’s former attorneys of record, John J. Wasinda. Subsequently, Defendants’ counsel filed a motion to be relieved as counsel indicating an inability to communicate with the defendant and represented that Defendant Collins obtained Nicholas Wilcox as new counsel of record. On July 14, 2026, Elizabeth Meyers appeared as defendant’s counsel and was ordered to provide notice of the next court date, which is this present motions date and the motion to withdraw was granted. The motion to compel is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 19, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: notice of motion to compel verified response to RFPD, memorandum of points and authorities in support of the motion; Declaration of Megan A. Sarraill and attached Exhibits A- C (totaling 38 pages); proof of service; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2031.020, subdivision (b), a party may make a demand for production of documents and propound interrogatories without leave of court at any time 10 days after the service of the summons on, or appearance by, the party to whom the demand is directed, whichever occurs first. (Code Civ. Proc., § 2031.020, subd. (b); Code Civ. Proc., § 2030.020, subd. (b)). The demand for production of documents is not limited by number, but the request must comply with the formatting requirements in Code of Civil Procedure section 2031.030. The party whom the request is propounded upon is required to respond within 30 days after service of a demand, but the parties are allowed to informally agree to an extension and confirm any such agreement in writing. (Code Civ. Proc., § 2031.060, subd. (a); Code Civ. Proc., § 2030.060, subd. (a); Code Civ. Proc., § 2031.070, subd. (a) - (b); Code Civ. Proc., § 2030.070, subd. (a) - (b)). A party must respond to interrogatories and document requests under oath. (Code Civ. Proc., §§ 2020.010(a), 2030.210(a); 2031.250(a)). An unverified discovery response is treated as no response. (<i>Steele v. Totah</i> (1986) 180 Cal.App.3d 545, 549; <i>Appleton v. Sup. Ct.</i> (1988) 206 Cal.App.3d 632, 636-37). In such a case, the propounding party may seek to compel verified responses. (<i>Id.</i>). Code of Civil Procedure section 2015.5 provides that a verification must be signed under penalty of perjury and state the date and place of execution. “[C]ourts do not find compliance with section 2015.5 to be both substantial and sufficient unless all statutory conditions appear